

		doctrine of res judicata and the prohibition against splitting causes of action.” (<i>Archstone Simi Valley, LLC v. Phillips</i> (2015) 2015 Cal.Super.LEXIS 14772, *10-11.) Plaintiff is seeking rent for November 2025, December 2025, January 2026, and February 2026, which were also sought in 30-2026-01558498-CL-UD-CJC, and Judge Carillo-Orellana ultimately found for the Defendant in that action regarding those same months. While the damages sought in this pending action are to a limited extent barred by res judicata, the pending action is otherwise not barred by the prior unlawful detainer judgment in Defendants’ favor. Therefore, the Court OVERRULES the Demurrer. Defendants are ordered to file an Answer within 5 business days. The Plaintiff is ordered to provide notice of the Court’s ruling.
18	30-2026-01594893 UDR Eight80 I LP vs. Reynoso	The Court has read and considered the Defendants Motion to Quash Service (ROA 15) and Proof of Service by Mail (ROA 22). The Court takes Judicial Notice of the Proofs of Service-Personal (ROA 9 & 11) and Proof of Service – Unnamed Occupants (ROA 13). California Evidence Code Section 647 creates a rebuttable presumption that a proof of service signed by a registered process server is true. It shifts the burden of proving lack of service to the defendant, rather than requiring the plaintiff to prove proper service. Registered process server Frank Harrigan (Orange County #1530) personally served Juan Reynoso, with description, on 9/8/2026 at 6:14 PM, and Brenda Catalan, with description, on 9/4/2026 at 10:42 AM. Defendants provide no evidence to support their claim that service was not proper; therefore, they fail to rebut the presumption under Evidence Code section 647. The Court DENIES the Motion to Quash Service of Summons. Defendants are ordered to file a responsive pleading within 5 calendar days. The Plaintiff is ordered to provide notice of the Court’s ruling.